

The examination is being carried out on the **following application documents**

Description, Pages

1-67 filed with entry into the regional phase before the EPO

Claims, Numbers

1-8 filed in electronic form on 21-06-2019

Drawings, Sheets

1/4-4/4 filed with entry into the regional phase before the EPO

- 1 Upon entry in the regional phase, the applicant has filed a new set of claims where the subject matter essentially has been limited to original claim 2. Superfluous claims have been deleted or renumbered.

In addition, the objected functional features as well as the brackets have been replaced or corrected.

Therefore, the present subject-matter meets the requirements of article 123(2) EPC.
- 2 In view of the fact that the present limitations (cf. e.g. R¹, R⁷ or A), the present subject matter can be considered as novel over D1 to D3.

However, looking at D4, compounds 19, 20, 31 and 32, it becomes clear that these compounds still fall under the present scope and thus the present subject-matter cannot be considered to be novel with respect to article 54(1)(2) EPC.
- 3 As regards inventive step, the applicant has argued that the present compounds have superior properties over the EGFR inhibitor AZD9291 which itself is superior over the prior art compounds.

However, it has to be made clear that, if compounds 19, 20, 31 and 32 would no more fall under the present scope after an appropriate limitation, they still represent the closest prior art for the assessment of inventive step with respect to the Decision of the Boards of Appeal T181/82. Therefore, comparative tests have to be carried out via these compounds. Moreover, it has to be pointed out that these compounds only show minor structural differences to the exemplified compounds 4-6. Such small differences are well within the knowledge of a skilled person.

Datum
Date 19.03.2020
Date

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Sheet 2
Feuille

Anmelde-Nr:
Application No: 16 802 532.8
Demande n°:

Therefore, the present subject-matter does not involve an inventive step with regard to article 56 EPC.